

Intro to Criminal

According to the *Ouimet Report* the proper scope and function of the criminal and correctional processes are:

1. The basic purpose of criminal justice is to protect all members of society, including the offender himself, from seriously harmful and dangerous conduct.
 - Note that the offender is included in the list of people who should be protected, this means that the offender may not suffer correctional measures that are extreme
 2. The basic purposes of the criminal law should be carried out with no more interference with the freedom of individuals than is necessary.
 - Society should receive as much protection as possible from criminals while maintaining society's freedom, but not simultaneously harming criminals excessively to achieve this protection
 3. Recognition of the innocent must be assured by proper protection at all stages of the criminal process.
 - Only those convicted of a crime should be punished for the crime
 4. No conduct should be defined as criminal unless it represents a serious threat to society, and unless the act cannot be dealt with through other social or legal means.
 - Breakdown of the scope of criminal law (criteria for criminalization):
 - i. No act should be criminally proscribed unless its incidence, actual or potential, is substantially damaging to society.
 - ii. No act should be criminally prohibited where its incidence may adequately be controlled by social forces other than the criminal process. Public opinion may be enough to curtail certain kinds of behaviour. Other kinds of behaviour may be more appropriately dealt with by non-criminal legal processes, e.g. by legislation relating to mental health or social and economic condition.
 - iii. No law should give rise to social or personal damage greater than that it was designated to prevent.
 - Designating certain anti-social behaviour as a "crime" to control it should be the last step because of the consequences that follow its designation as a crime and people's entry into the criminal system because of it
- [...]
7. Discretion in the application of the criminal law should be allowed at each step in the process: arrest, prosecution, conviction, sentence and corrections.

- The criminal justice system does not need to follow the letter of the law blindly, but instead can exercise its discretion and determine how each stage of the process should be handled with the safety of the community in mind

Napoleon and Friedland outlined the colonization and uprooting of the Indigenous legal system by the Canadian settlers:

- **Wetiko** -> the legal concept of the “ordinariness of human monstrosity”
 - Indigenous community treated these people as still human, trying to heal and rehabilitate them back into the community
 - Provided violent offenders MULTIPLE opportunities to recover, but if all else failed, offenders were met with legally-qualified under Indigenous law force
 - This force was criminalized by colonizers right away, and instead those Indigenous law-enforcers faced harm by the colonizers
- Indigenous people were belittled and considered “incapable of reason” for their legal system even after they tried explaining the system to the colonizers

Sentencing

Principles and Purposes of Sentencing

- **S. 718: Purpose of sentencing**
 - The goal of sentencing is to protect society and achieve the following goals
 - Denounce unlawful conduct and the harm that comes from it
 - Deter the offenders and others from repeating the same offence
 - Separate offenders from society if needed
 - Assist in rehabilitating offenders
 - Provide reparations for the harm done to victims/community
 - Provide a sense of accountability and awareness of the damage that offenders caused
- **S.718.04: Offence against vulnerable person**
 - When the court imposes a sentence that is for an offence committed against a person who is vulnerable because of personal circumstances (including being Aboriginal or female) the court should focus on the objectives of denunciation and deterrence of the conduct that forms the basis of the offence
- **S.718.1: Fundamental principle of proportionality**
 - A sentence must be proportionate to both the gravity of the offence and the degree of responsibility of the offender

- Proportionality is the organizing principle for sentencing, and parity and individualization are the secondary principles to it
 - **Parity:** the concept that similar offenders who commit similar crimes should receive similar punishments
 - Parity gives meaning to proportionality in practice as sentencing precedents embody the collective experience and wisdom of the judiciary
 - **Individualization:** the concept that all individual characteristics of the case must be taken into account when deciding sentencing instead of applying a one-size-fits-all approach to sentencing
 - Individualization support the principle of proportionality by assessing all characteristics of the offence to ensure that an proportionate sentence is handed down
- **S.718.2: Other sentencing principles**
 - When a court imposes a sentence it should also take into account:
 - A sentence can be increased/reduced to account for any aggravating or mitigating circumstances related to the offence or the offender
 - A set of examples of aggravating factors are named
 - The sentence should be similar to sentences imposed on similar offenders for similar offences committed in similar circumstances (**parity**)
 - If consecutive sentences are imposed, the combined sentence should not be unduly or overly harsh
 - An offender shouldn't be deprived of liberty if there are less restrictive sanctions that are appropriate in the circumstances (**restraint**)
 - All other sanctions that are available to offenders besides imprisonment that are **reasonable** based on the circumstances and is consistent with the harm done to the victims of the offence should be considered by the courts for all offenders, with special consideration for the circumstances of Aboriginal offenders
- **S.718.201: Additional consideration – increased vulnerability**
 - A court that imposes a sentence for an offence involving the abuse of an intimate partner shall consider the increased vulnerability of female persons who are victims, and they add focus to the circumstances of Aboriginal female victims

Case Study: *R v Arcand* (2010)

Introduction:

- A lack of public confidence in the justice system threatens the rule of law's effectiveness
 - o The appeal from the Crown on the sentence in *R v Arcand* raised issues relating to maintain public confidence in the sentencing process
- **S.718 of the Criminal Code** existed to allow Parliament to show how important public confidence is to the authority of the law
 - o It achieved its goal by outwardly stating what the purpose of sentencing was in s.718:
 - “to contribute, along with crime prevention initiatives, to respect for the law and the maintenance of a just, peaceful, and safe society”
 - And the means in which it achieved this goal was also found in the same section -> “by imposing just sanctions”
 - What is a *just sanction*?
 - S.718.1 in the CC states that a sentence must be proportionate to two things -> “**the gravity of the offence and the degree of responsibility of the offender**”
 - This is known as the **Principle of Proportionality** which underscores all sentencing reasonings
 - o There are other principles in s.718.2 that are also to be used when considering sentencing that include the gravity of the offence and the moral blameworthiness of the offender and consider aggravating/mitigating circumstances, as well as the principles of **parity** and **restraint**
- Above all else, the twin duty on judges of imposing just sanctions while simultaneously assuring fair and equal justice are the most important to maintaining public trust, and courts of appeal bear a crucial role in ensuring this result

Historical Background

- From 1892 (first Criminal Code in Canada) to 1921 (courts of appeal given power to review fitness of sentence), trial judges had unrestrained discretion in sentencing offenders
 - o This was because at the time, since Parliament defined crime very broadly and included acts of different severity it ended up also providing an equally

broad range for judges to assign sentences, only maximums were given, not minimums

- Courts of appeal at this point could only consider the technical legality of the sentence imposed, not the elements of the sentence
- The issue with this unconstrained control is that arbitrary decision-making will naturally arise from it, Parliament's decision to allow sentence appeals on their merits was the first in a series of steps Parliament has taken since Confederation to avoid injustices inherent in unfettered discretion
 - However after 50 years, not much changed, the sentencing judge's original sentence remained the one that stuck
- After a lot of dissatisfaction with the inconsistency present in sentencing that appeared to be unjustified, both on resulting sentence and on application of principles, the appeal courts adopted starting points or other guidelines to create reform motivated by assuring fair and equal justice
- The *Daubney Report* was a report consisting of sentencing reform recommendations that was created after legislators realized that sentencing reform is essential to preserve public confidence and the federal government began sponsoring a number of sentencing reform initiatives
 - The government appointed the Canadian Sentencing Commission to consider Canada's sentencing regime, and they produced the 1987 *Canadian Sentencing Commission Report*
 - These initiatives shared 2 core premises
 - Based on the *Daubney Report* and the *Canadian Sentencing Commission Report*, the public confidence in the fairness of sentencing in Canada had been undermined by the widespread concerns about arbitrariness and disparity in sentencing
 - The sentencing objectives set out in the *Sentencing Commission Report* which included clarity, predictability, fairness, and equity, could not be attained while unconstrained sentencing discretion remained present
 - In response to these initiatives, the Parliament's first attempt to define and confine the scope of the courts discretion in sentencing, 1996 Sentencing Reforms, was established, but it would not be its last attempt

Parliament Implements Sentencing Reforms in Canada

- The 1996 Sentencing Reforms reconfigured Part XXIII of the CC on sentencing

- For the first time the *Code* included an express statement of the purpose and principles of sentencing, this created a uniform approach to sentencing in Canada and therefore the courts would be bound to serve the purpose and apply the principles
- Parliament did not intend to leave sentencing discretion standardless after the sentencing reforms, instead, it controlled the discretion of the courts in 2 ways:
 - Confined the exercise of discretion within statutorily-prescribed sentencing principles and objectives
 - No matter what objectives are more or less important, the court must arrive to a just and appropriate sentence that meets the proportionality principle
 - Although Parliament left sentencing to the courts, they added a requirement that the courts **must provide reasons for the sentence they set**
 - S.726.2 of the CC -> When imposing a sentence, a court shall state the terms of the sentence imposed, and the reasons for it, and enter those terms and reasons into the record of the proceedings.
 - Parliament made the assumption that with this duty, rational reasons could be provided in every case when discussing sentencing
- Sentencing in Canada contains an element called **individualization**
 - **Individualization = a court decides sentencing solely based on the facts of the case such as offender's culpability, gravity of offence, etc**
 - Although the offender is the focus of individualization, the harm to the victim/community must be considered as well since it a central element of proportionality (*gravity of offence*)
 - Without appeal courts to provide guidance, the range of possible sentences for most crimes is huge and consequently the risk for potential unwarranted disparity is equally large
 - Individualization does not guarantee completely identical sentences between judges, but wide variation between sentencing that isn't based on valid distinctions undermines the public's trust in the criminal justice system and its execution of treating people fairly and equally

Sentencing Aboriginal Offenders

Case Study: *R v Ipeelee*

Facts:

- The case consists of two defendants, Mr Ipeelee and Mr Ladue and their appeals both dealt with the same legal issue so the court found it fitting to handle both together
- Both Mr Ladue and Mr Ipeelee were Aboriginal men who came from incredibly harsh and detrimental upbringings by no fault of their own, and unfortunately their backgrounds put them in positions where they were more likely to commit crimes. They both committed multiple crimes that led each of them to be labelled as Long-term offenders (LTO) who were given long-term supervision orders (LTSO).
 - o LTSO is defined as a court order that acts as a sentencing option for an LTO where the offender is supervised in accordance with the *Corrections and Conditional Release Act*. The supervision order begins once the offender has finished serving all sentences for offences that they've been convicted on. The period of supervision cannot be greater than 10 years
 - o A breach in an LTSO is an indictable offence (s.753.3(1) in CC) and punishable by imprisonment up to 10 years
- Ipeelee suffered from alcoholism that stemmed from his upbringing and contributed to the crimes that he committed, and so his LTSO had a condition that prohibited alcohol consumption
 - o One year after he was released from jail to serve his LTSO he was seen intoxicated while riding his bike and charged with breaching a condition of his LTSO
 - o The sentencing judge sentenced Ipeelee to 3 years minus his time spent in pre-sentence custody
 - The judge reasoned that since the sentencing was for a breach of a LTSO condition, the protection of the public is the main objective at hand and rehabilitation plays a less important role, and therefore, an offender's Aboriginal status is of "diminished importance"
- Ladue suffered from severe drug abuse problems, and after a sentencing judge imposed a 7-year LTSO he was supposed to be released to Linkage House in Kamloops, where he hoped to receive culturally relevant support from an Aboriginal Elder. However upon release from prison to serve his LTSO, he was arrested at the prison gate due to an administrative error and because of that delay he lost his placement at Linkage House and had to be sent to Belkin House.

- Ladue was worried about being placed at Belkin House because of his increased accessibility to drugs in the neighborhood around Belkin and in Belkin itself
- At Belkin House Ladue began associating himself with another offender who was a known drug user and after failing 2 urine tests due to cocaine presence in the sample he was arrested on breaching his LTSO
 - Similar to Ipeelee, the judge concluded that the most important objective of the sentencing was to protect society from the offender and therefore sentenced him to 3 years imprisonment
 - The judge recognized the difficulty of Ladue's upbringings, but decided that those factors should not impact on his sentence

Issue:

- How should sentencing from breach of an LTSO be approached when considering an offender's Aboriginal background with respect to the *Gladue* principles?

Held:

- Judges decided that the sentence imposed on both defendants was unjust and substituted both sentences

Reasons:

- Considering the goal of proportionality, wherein the sentence must match both the gravity of the offence and the blameworthiness of the offender
 - From the perspective of considering the gravity of the offence, it's important to consider the goals of LTSO
 - Protecting the public from the risk of reoffence
 - Rehabilitating the offender and reintegrating them with their community
 - From the perspective of the blameworthiness of the offender, it's important to balance this goal with the goal of the *Gladue principles*
 - Aboriginals are overrepresented in the prison system and *Gladue* attempts to resolve this by encouraging sentencing judges to consider a goal of restorative justice when deciding sentencing methods
 - Judges were also called upon to pay particular attention to the circumstances surrounding Aboriginal offenders because of the uniqueness of their background

- Courts must take into consideration multiple factors of an Aboriginal offenders background considering the prevalent trends of suffering that are present in the background of almost all Aboriginal offenders
- *Gladue principles* have faced 3 criticisms that needed to be addressed (responses in the subpoints)
 - **Sentencing is not where the issue of overrepresentation can be solved**
 - Consider 2 possible reasons why there is Aboriginal overrepresentation in the first place:
 - Aboriginal people commit a disproportionate number of crimes
 - Aboriginal people are victims of a discriminatory justice system
 - Both are in place and sentencing judges can help solve both
 - Sentencing judges can work to reduce crime rates in Aboriginal communities by creating sentencing that deters criminality and rehabilitates offenders, which are codified objectives of sentencing
 - Judges can be more aware of Aboriginal offenders background when deciding sentences to avoid perpetuating systemic discrimination
 - ***Gladue principles* provide effectively a race-based discount for Aboriginal offenders**
 - ***Gladue principles only direct judges to consider 2 ideas:***
 - ***the unique background factors that may have played a part in bringing the Aboriginal offender in front of the courts***
 - ***types of sentencing procedures and sanctions which are appropriate for the offender based on his Aboriginal heritage***
 - These 2 considerations can be supported as follows:
 - Canadian criminal law concerns itself with voluntary conduct, this is not to say that the socioeconomic deprivation that Aboriginal people go through makes their actions *involuntary* but their circumstances give way to a diminished moral culpability
 - Failure to consider this is failure to uphold the Proportionality Principle as it states that the sentence

must be “proportionate to the gravity of the offence and the *degree of responsibility of the offender*.”

- The types of sentencing are not concerned with the culpability of the offender, but on the effectiveness of the sentence itself
 - *Gladue* principles direct sentencing judges to not use the presumption that all offenders and communities share the same values and that because of different world views, the objective of sentencing may be achieved in Aboriginal communities with a different sanction style
- **Providing special treatment to Aboriginal offenders is inherently unfair as it creates a lack of parity between Aboriginal offenders and non-Aboriginal offenders who are similarly situated**
 - This argument makes the presupposition that Aboriginal offenders aren't unique and ignores the distinct history of Aboriginal peoples in Canada and their suffering
 - The *Gladue* decision doesn't say that background and systemic factors shouldn't be taken into consideration for other non-Aboriginal offenders
 - The parity principle only requires that the difference between sentencing for 2 similar offenders be justified
 - *Gladue* leads to different sentences for Aboriginal offenders
 - However those differences in sentences **are justified based on Aboriginal people's unique circumstances** and so the parity principle remains upheld
 - Courts must be sure that a formalistic approach to upholding parity **must not undermine the remedial purpose of the *Gladue* principles**
 - Parity is easy to achieve in a very homogenous society, but Canada is very diverse, there is a different level of impact on different offenders with the same sentence
 - There is no point in comparing an Aboriginal offender's sentence to a hypothetical non-Aboriginal offender because the courts must consider all of the circumstances of the offender **including the ones described in *Gladue***
- Application of *Gladue* principles can be erroneous

- Some cases incorrectly suggest that an offender **must establish a causal link between background factors and the commission of the current offence** before being able to have a sentencing judge consider those matters
 - It would be very difficult for an Aboriginal offender to ever establish a causal link between his circumstances and his offending
 - Also s.718.2(e) does not logically need that link established, systemic and background factors do not operate as an excuse for criminal conduct
 - The operation is that sentencing judges are provided context to determine the appropriate sentence
 - This doesn't mean that factors are just applied to every eligible offender blindly and therefore every eligible offender receives this adjusted consideration
 - Unless the unique circumstances of the specific offender poses some direct impact on their culpability or provide insight into what sentencing objectives should be focused on
- Another erroneous application is based on the passage in *Gladue* that says

“[g]enerally, the more violent and serious the offence the more likely it is as a practical reality that the terms of imprisonment for aboriginals and non-aboriginals will be close to each other or the same, even taking into account their different concepts of sentencing”

- Courts have taken this statement to understand that *Gladue* principles do not apply to serious offences
 - But there is no definition of “serious” offence under the law, and trying to create an exception for *Gladue* through it would lead to inconsistency between cases because judges are left to use their discretion when determining what a “serious” offence is
 - This would also take away a lot of s.718.2(e)'s remedial power as the whole point of the section is to reduce overincarceration and overreliance on it
- When considering the case of *Ipeelee* the courts erred in determining that the safety of the public is the paramount objective when sentencing for breach of an LTSO and that rehabilitation only plays a small role

- Using this distribution of objective priority resulted in a weakened consideration of Mr Ipeelee's circumstances as an Aboriginal offender
- The courts must focus on the circumstances that gave rise to the breach of his LTSO, which was only alcohol consumption, not alcohol consumption and becoming violent
 - Ipeelee had been 18 months into his LTSO and living in Kingston where there are few culturally-relevant support systems for him
 - Outside of the one refusal of urinalysis, there is no evidence that he consumed alcohol prior to the breach that's being charged
 - He's been drinking since 11 years old, relapses are expected to occur on the path to rehabilitation
- With regards to Ladue, the Court of Appeal was right to substitute the sentence of 3 years imprisonment for one year
 - They correctly held that the sentencing judge in the provincial court failed to give sufficient weight to Ladue's circumstances as an Aboriginal offender
 - Furthermore, they Court of Appeal held that a 3-year sentence is not proportionate to the offence because of the fact that Ladue was misplaced at the Belkin House where he was tempted and unsupported, instead of the Linkage House where he would have been supported by culturally relevant programming and the support of an Elder